

Jitendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 May 2022 · Writ-C No. 6355 of 2022 · Writ-C No. 6355 of 2022 · **Writ disposed; petitioner relegated to clause 6.8 objection with limited stay of recovery.**

HEADNOTE

A writ challenging a recovery citation issued as arrears of land revenue was disposed of without entering the merits. The consumer was given liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided in a time-bound manner after hearing, with coercive recovery stayed for a limited period.

FACTUAL SUMMARY

Jitendra Singh, a consumer, challenged a recovery citation dated 6 January 2022 issued by respondent no. 4 demanding Rs. 11,57,839 together with interest as arrears of land revenue. He also sought a mandamus restraining coercive action on that citation until disposal of his application/appeal dated 29 January 2022. Counsel for the power distribution corporation (respondents 2 and 3) stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

clause 6.8 objection as alternate remedy against recovery citation

HOLDING

Without expressing any opinion on merits, the writ against a recovery citation of Rs. 11,57,839 as arrears of land revenue was disposed of with liberty to the petitioner to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks. If so submitted, the objection is to be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ against the recovery citation was disposed of without merits adjudication; the consumer was relegated to a para 6.8 objection with time-bound disposal and a limited stay of coercive recovery. ¶ 1

para-6.8-objection-alternate-remedy Liberty was granted to file an objection under para 6.8 of the 2005 Supply Code before the distribution licensee (respondent no. 3) within four weeks, to be decided after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION OF RS. 11,57,839

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1